

7-8. 23CV03195 GARCIA, ALBERTO V. FIRESTORM WILDLAND FIRE SUPPRESSION, INC

EVENTS: (1) Plaintiff's Motion for Leave to Amend Complaint to Substitute Class Representative

(2) Order to Show Cause Why Case Should Not be Dismissed in Light of Former Plaintiff Alberto Garcia's Death

Plaintiff's Motion for Leave to Amend Complaint to Substitute Class Representative is granted. The Court grants leave to amend the class claims to include Plaintiff Devin Baxter and stays the PAGA claim to permit Plaintiff to conduct discovery and identify a qualified PAGA representative to be added by further amendment. The Court sets this matter for a status hearing on September 30, 2026 at 10:30 a.m. for status of the PAGA claim. The Court vacates the Order to Show Cause Why Case Should Not be Dismissed in Light of Former Plaintiff Alberto Garcia's Death in light of the above. The Court also advances the Case Management Conference on July 1, 2026 at 10:30 a.m. to 9:00 a.m. and continues the Case Management Conference to September 30, 2026 at 10:30 a.m. Case Management Statements are to be timely filed and served.

9. 24CV02467 DOE, JANE V. CHICO UNIFIED SCHOOL DISTRICT

EVENT: Defendant Chico Unified School District's Motion to Compel Further Discovery Responses and Request for Monetary Sanctions

Defendant Chico Unified School District's ("Defendant" herein) Motion to Compel Further Discovery Responses and Request for Monetary Sanctions is granted. Plaintiff Jane Doe ("Plaintiff" herein) shall serve code-compliant verified supplemental responses to Defendant's Supplemental Interrogatories (Set One) Defendant's Supplemental Request for Production of Documents (Set One) within twenty calendar days of service of notice of this Order. Monetary sanctions in the amount of \$3,000 are awarded in favor of Defendant and against Plaintiff and their counsel of record Mary E. Alexander, Mary Alexander & Associates, P.C., which are to be paid within thirty days' notice of this order. The Court will utilize the form of order submitted by counsel with modifications as noted herein.

10. 24CV02857 PLATTS, TOBIAS II ET AL V. JOHNSON, MARK ET AL

EVENT: Defendants' Motion to Compel Further Responses to Requests for Admissions, Set One, and Form Interrogatories, Set One, Request for Monetary, Evidentiary, and Terminating Sanctions

Defendants' Motion to Compel Further Responses to Requests for Admissions, Set One, and Form Interrogatories, Set One, Request for Monetary, Evidentiary, and Terminating Sanctions is granted in part as follows:

The Motion is denied as to the Requests for Admissions, and Form Interrogatory Nos. 6.3, 7.1 and 7.2, the Court finding that Plaintiffs' responses are code-compliant and sufficient.

The Motion is granted as to Form Interrogatory Nos. 6.4(d) [insufficient as the response does not answer the question posed], 6.7 [insufficient as to subdivisions (b) (the complaints for which the treatment was advised) and (c) (the nature, duration, and estimated cost of the treatment)], 12.6 [insufficient as to (b) [(he date and type of report made), and 17.1 [evasive and incomplete because it has been combined in a single response without specific reference to the Requests for Admission to which it applies]. Plaintiffs are ordered to provide further responses to the aforementioned Form Interrogatories, Set One, within fifteen days from the date of this hearing.

The Court finds that there has been no showing of ongoing and willful disobedience of a Court's discovery order nor blatant and ongoing abuse of the discovery process that rises to the level of discovery abuse to support terminating sanctions. As such, terminating sanctions are not warranted on this record. See, *Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc.* (2008) 163 Cal.App.4th 1093. Likewise, as to evidentiary sanctions, the Court similarly finds that such are not warranted here. However, the Court awards additional monetary sanctions in the amount of \$3,283, which are imposed jointly and severally against Plaintiffs and Plaintiffs' counsel. The additional monetary sanctions shall be paid to Defendants' counsel within thirty days. The Court will utilize the form of order submitted by counsel with modifications as noted herein.

11. 25CV00744 FISHER, JEFF V. FISHER, JENNIFER

EVENT: Amended Motion for Stay of Enforcement Pending Appeal

As indicated in the Court's prior ruling on June 10, 2026, while the notice period complied with *Code of Civil Procedure* §1005, the proof of service showing service by email on May 8, 2026, service was made on Defendant's prior counsel – Leonard C. Hart Nibbrig. However, on May 6, 2026, Defendant filed a Substitution of Attorney wherein Mr. Nibbrig substituted out, and Defendant Jennifer Fisher, indicated she would be proceeding in pro per. There is still no evidence that the Motion was served on Jennifer Fisher and the Court therefore continues this matter one last time to July 22, 2026 at 9:00 a.m. to allow for proper notice. Plaintiff Jeff Fisher is ordered to serve a copy of the Amended Motion with notice of the new hearing date on Defendant Jennifer Fisher, and file with the Court a proof of service. If the proof of service is not filed with the Court prior to the continued hearing date, the Motion will be denied.

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